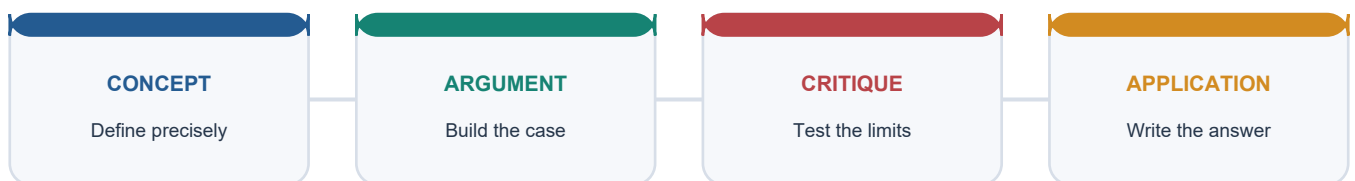


SOLVED PRACTICE WORKBOOK

Attorney-General for India and Advocate-General - Solved Practice Workbook

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

CONTENTS / WORKBOOK INDEX

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

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Attorney-General for India and Advocate-General - Solved Practice Workbook

Subject: Polity | **Control date:** 8 September 2026

Locked discipline: exactly 32 original MCQs before PYQs; ABCD repeated eight times; 128 unique option explanations; 32 unique examiner traps; verified-PYQ official-key discipline; exactly six original Mains models.

Exactly **32 original MCQs** appear before PYQs. Correct-option sequence: ABCD repeated eight times. Every question has four substantive option-specific explanations and one unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1. Article 76 appointment

Who formally appoints the Attorney-General for India?

A. The President B. The Prime Minister C. Parliament D. The Chief Justice of India

Answer: A.

Option-specific explanations:

- **A:** The President is the constitutional appointer.
- **B:** The Prime Minister may be central to advice in practice but is not the formal constitutional appointer.
- **C:** Parliament neither elects nor confirms the AGI under Article 76.
- **D:** The Chief Justice of India has no Article 76 appointment power.

Examiner trap 1: Executive advice in practice must not replace the formal constitutional actor.

MCQ 2. Qualification standard

The Attorney-General must be qualified for appointment as

A. a High Court Judge only B. a Supreme Court Judge C. the Chief Justice of India D. a Member of Parliament

Answer: B.

Option-specific explanations:

- **A:** The State Advocate-General uses the High-Court-Judge standard; the AGI does not.
- **B:** Article 76(1) expressly uses the Supreme-Court-Judge qualification.
- **C:** Qualification for the Court is required, not qualification specifically to be Chief Justice.
- **D:** Parliamentary membership is irrelevant to appointment.

Examiner trap 2: Qualification to be a judge is not appointment as a judge.

MCQ 3. Article 124(3) route

Which combination can satisfy the AGI qualification?

A. Citizenship plus five years as any district judge B. Citizenship plus seven years as any advocate C. Citizenship plus ten years as advocate of one or more High Courts in succession D. Ten years as an MP without citizenship

Answer: C.

Option-specific explanations:

- **A:** District judgeship for five years is not the stated Article 124(3) route.
- **B:** Seven years of general advocacy does not satisfy the constitutional wording.
- **C:** This is one express alternative in Article 124(3).
- **D:** Citizenship is mandatory and legislative experience is not a substitute.

Examiner trap 3: Use the exact High Court and duration language.

MCQ 4. No retirement-age import

Which statement about the AGI is constitutionally correct?

A. The AGI retires at sixty-two B. The AGI retires at sixty-five C. The AGI must be a retired Supreme Court Judge D. Article 76 prescribes no retirement age for the office

Answer: D.

Option-specific explanations:

- **A:** Sixty-two relates to High Court judges, not AGI tenure.
- **B:** Sixty-five relates to Supreme Court judges, not an AGI retirement rule.
- **C:** Prior Supreme Court service is not mandatory.
- **D:** Article 76 uses pleasure tenure without an age ceiling.

Examiner trap 4: Do not import judicial tenure conditions along with judicial qualification.

MCQ 5. Article 76(2) duty

Article 76(2) principally requires the AGI to

A. advise the Government of India on referred legal matters and perform assigned or conferred legal functions B. audit Union expenditure C. preside over constitutional benches D. direct State Advocate-Generals

Answer: A.

Option-specific explanations:

- **A:** This accurately combines the clause's three functional channels.
- **B:** Public audit belongs to the CAG architecture.
- **C:** Judicial benches are presided over by judges, not government counsel.
- **D:** State Advocate-Generals are not constitutionally subordinate to the AGI.

Examiner trap 5: A broad legal role is still an assigned and bounded role.

MCQ 6. Right of audience

Article 76(3) gives the AGI a right of audience

A. only in the Supreme Court B. in all courts in the territory of India while performing duties C. only in constitutional cases D. in Parliament as a voting member

Answer: B.

Option-specific explanations:

- **A:** The constitutional reach is not confined to the Supreme Court.
- **B:** This states both territorial breadth and functional condition.
- **C:** The text is not limited to a case category.
- **D:** Parliamentary participation comes from Article 88 and carries no vote.

Examiner trap 6: Audience means a right to be heard, not an exclusive brief.

MCQ 7. Article 88 participation

Under Article 88, the AGI may

A. vote in either House B. participate only if elected C. speak and take part in either House, a joint sitting and a named committee without voting by office D. preside over a joint sitting

Answer: C.

Option-specific explanations:

- **A:** Article 88 does not confer a vote.
- **B:** Election is not a condition for the constitutional participation right.

- **C:** This reproduces the participation/no-vote balance.
- **D:** Presiding authority is not assigned to the AGI.

Examiner trap 7: Voice in Parliament is not membership of Parliament.

MCQ 8. Article 105(4)

The safest statement on the AGI's parliamentary privilege is

A. the AGI has permanent immunity from every legal proceeding B. the AGI becomes an MP for privilege purposes C. Article 88 alone creates blanket immunity D. Article 105(4) extends the relevant clauses to constitutionally entitled participants for the legislative function

Answer: D.

Option-specific explanations:

- **A:** No lifetime or universal immunity follows.
- **B:** Privilege extension does not create membership.
- **C:** Article 88 supplies participation, while Article 105(4) handles the extension.
- **D:** This accurately ties privilege to constitutional participation.

Examiner trap 8: Always connect privilege to the proceeding, not the person in every capacity.

MCQ 9. Pleasure tenure

The constitutional tenure of the AGI is best described as

A. office during the President's pleasure, with no fixed constitutional term B. six years or age sixty-five C. five years protected against removal D. tenure until the Lok Sabha dissolves

Answer: A.

Option-specific explanations:

- **A:** This is the exact constitutional position.
- **B:** That formula belongs elsewhere and is not an AGI rule.
- **C:** No five-year protection appears in Article 76.
- **D:** The office is not legally coterminous with the Lok Sabha.

Examiner trap 9: Convention after a change of government is not a constitutional expiry rule.

MCQ 10. Remuneration

Under Article 76(4), AGI remuneration is

A. fixed in the Second Schedule B. determined by the President C. voted annually by the Supreme Court D. identical to a Supreme Court Judge's salary

Answer: B.

Option-specific explanations:

- **A:** The Second Schedule does not fix AGI remuneration.
- **B:** This follows Article 76(4).
- **C:** The Supreme Court does not vote remuneration.
- **D:** Qualification parity does not create salary identity.

Examiner trap 10: Do not infer salary conditions from the qualification standard.

MCQ 11. Effect of advice

An AGI legal opinion is

A. a binding constitutional direction B. a judgment enforceable by itself C. advice that informs government but does not bind the government or court merely by office D. equivalent to legislation

Answer: C.

Option-specific explanations:

- **A:** No Article grants binding-direction power.
- **B:** Only a court issues a judgment in litigation.
- **C:** This preserves the advice/decision distinction.
- **D:** Legal advice cannot enact law.

Examiner trap 11: High constitutional status does not convert an opinion into law.

MCQ 12. Cabinet status

Which proposition is correct?

A. The AGI is ex officio Law Minister B. The AGI is a Cabinet member without portfolio C. The AGI votes in Cabinet on legal questions D. The AGI is not part of the Cabinet by virtue of office

Answer: D.

Option-specific explanations:

- **A:** The Law Minister is a separate political office.
- **B:** No automatic Cabinet membership exists.
- **C:** Cabinet voting follows ministerial status, which the AGI lacks.
- **D:** This is the correct institutional boundary.

Examiner trap 12: Article 88 participation cannot be converted into Cabinet membership.

MCQ 13. Whole-time status

The standard constitutional and professional description is that the AGI

A. is not a whole-time government servant B. must be a career civil servant C. cannot undertake any outside professional work D. is a permanent judicial officer

Answer: A.

Option-specific explanations:

- **A:** This states the recognised status, subject to professional restrictions.
- **B:** Civil-service recruitment is not the Article 76 design.
- **C:** Outside work is not universally barred, though rules sharply constrain it.
- **D:** The AGI is an advocate, not a judge.

Examiner trap 13: Part-time status never means conflict-free unrestricted practice.

MCQ 14. Adverse brief

A covered Union law officer may advise or hold a brief against the Government of India

A. whenever fees are privately paid B. not under Rule 8's adverse-interest restriction C. after informing the Supreme Court Registry D. whenever Parliament is not in session

Answer: B.

Option-specific explanations:

- **A:** Private payment cannot cure divided loyalty.
- **B:** This states the controlling conflict rule.

- **C:** Registry notice is not a substitute for the bar.
- **D:** Legislative session has no bearing on the conflict.

Examiner trap 14: Conflict controls follow the client and matter, not the forum calendar.

MCQ 15. Criminal defence permission

Under the applicable Union Law Officers Rules, defence of an accused in a criminal prosecution

A. is always compulsory B. is always prohibited without exception C. requires Government of India permission D. requires parliamentary resolution

Answer: C.

Option-specific explanations:

- **A:** No compulsory-defence duty exists.
- **B:** The rule contains a permission route.
- **C:** This accurately states the condition.
- **D:** Parliament does not grant the permission.

Examiner trap 15: Distinguish a conditional restriction from a universal prohibition.

MCQ 16. Company office permission

Acceptance by a covered Union law officer of an office in a company or corporation

A. is unrestricted B. requires only Bar Council permission C. is barred only after retirement D. requires Government of India permission under the rule

Answer: D.

Option-specific explanations:

- **A:** The rule imposes a control.
- **B:** Bar Council permission is not the specified governmental permission.
- **C:** The restriction operates during the law-officer engagement.
- **D:** This states the rule's permission route.

Examiner trap 16: The rule concerns an office in a company or corporation, not merely a courtroom brief.

MCQ 17. Solicitor General status

The Solicitor General of India is

A. an executive/rule-governed Union law officer, not a constitutional office B. created by Article 76(5) C. a Supreme Court Judge by office D. a Cabinet minister

Answer: A.

Option-specific explanations:

- **A:** This is the correct classification.
- **B:** Article 76 has only four clauses and does not create the SG.
- **C:** Litigation prominence does not confer judgeship.
- **D:** The SG is not a minister by office.

Examiner trap 17: Conventional rank is not constitutional creation.

MCQ 18. Article 88 office-holder

Which office receives Article 88 participation by virtue of that office?

- A. Every Additional Solicitor General B. The Attorney-General for India C. Every private senior advocate D. The Solicitor General alone

Answer: B.

Option-specific explanations:

- **A:** ASGs do not receive Article 88 rights by office.
- **B:** This is the constitutionally named participant.
- **C:** Professional seniority does not create parliamentary participation.
- **D:** The SG is not substituted for the AGI in Article 88.

Examiner trap 18: Read the named office, not the litigation hierarchy.

MCQ 19. Advocate-General source

The Advocate-General for a State is created by

- A. Article 76 B. Article 148 C. Article 165 D. a Union executive rule

Answer: C.

Option-specific explanations:

- **A:** Article 76 creates the AGI.
- **B:** Article 148 creates the CAG.
- **C:** This is the correct State provision.
- **D:** An executive rule cannot replace the constitutional source.

Examiner trap 19: Union and State constitutional law officers have separate Articles.

MCQ 20. Advocate-General qualification

Which is a valid Advocate-General qualification route?

- A. Distinguished jurist in the Governor's opinion B. Five years as a High Court Judge only C. Ten years as any private legal consultant D. Citizen of India with ten years as advocate of one or more High Courts in succession

Answer: D.

Option-specific explanations:

- **A:** The distinguished-jurist route belongs to Article 124(3), not Article 217(2).
- **B:** The judicial-office route is ten years in judicial office, not five High Court years.
- **C:** General consultancy is not the constitutional wording.
- **D:** This accurately states one route.

Examiner trap 20: Do not import the distinguished-jurist route from the AGI qualification.

MCQ 21. Article 177

Article 177 allows the Advocate-General to

- A. speak and take part in the State House or Houses and a named committee without voting by office B. vote in the Legislative Assembly C. preside over the Legislative Council D. participate only if elected

Answer: A.

Option-specific explanations:

- **A:** This states the complete participation/no-vote rule.
- **B:** No voting right follows.
- **C:** Presiding authority is not conferred.

- **D:** Election is not necessary for participation.

Examiner trap 21: A bicameral State is covered, but there is no invented State joint sitting.

MCQ 22. Article 194(4)

Article 194(4) is relevant because it

A. makes the Advocate-General a legislator B. extends the relevant privilege clauses to constitutionally entitled participants C. grants immunity for all private acts D. creates an all-India right of audience

Answer: B.

Option-specific explanations:

- **A:** It does not create membership.
- **B:** This is the precise function.
- **C:** The protection is not blanket personal immunity.
- **D:** Audience is a different question and Article 165 has no Article 76(3) equivalent.

Examiner trap 22: Privilege, membership and audience are three different legal ideas.

MCQ 23. Audience comparison

Which comparison is textually correct?

A. Both Articles 76 and 165 expressly grant all-India audience B. Article 165 grants a Supreme-Court-only audience C. Article 76(3) expressly grants all-court audience; Article 165 contains no matching clause D. Neither Constitution provision addresses audience

Answer: C.

Option-specific explanations:

- **A:** Article 165 has no matching express text.
- **B:** No Supreme-Court-only right appears in Article 165.
- **C:** This is the exact textual distinction.
- **D:** Article 76(3) expressly addresses audience.

Examiner trap 23: Do not fill a textual silence by copying the Union clause.

MCQ 24. Law Minister distinction

The Law Minister differs from the AGI because the Law Minister

A. is the constitutional highest law officer B. has Article 76(3) audience by office C. is appointed as a Supreme Court Judge D. is a political executive member subject to ministerial responsibility

Answer: D.

Option-specific explanations:

- **A:** Article 76 status belongs to the AGI.
- **B:** Court audience does not flow from ministerial office.
- **C:** Judicial appointment is unrelated.
- **D:** This states the decisive political-accountability distinction.

Examiner trap 24: Legal portfolio leadership is not the same as constitutional legal advocacy.

MCQ 25. CJI distinction

The Chief Justice of India differs from the AGI principally because the CJI

A. heads the judiciary and participates in adjudication rather than serving as government counsel B. advises the Government under Article 76 C. may privately brief against the Union under Rule 8 D. votes in Parliament under Article 88

Answer: A.

Option-specific explanations:

- **A:** This accurately separates adjudication from representation.
- **B:** Article 76 advice belongs to the AGI.
- **C:** Rule 8 concerns Union law officers, not the CJI.
- **D:** Article 88 names the AGI, not the CJI.

Examiner trap 25: Both deal with law, but only one decides cases judicially.

MCQ 26. Private advocate distinction

A private advocate engaged by the Union

A. automatically becomes an Additional Solicitor General B. does not acquire Article 76 or Article 88 status merely from the brief C. may vote in Parliament on the case D. becomes a constitutional officer for the duration

Answer: B.

Option-specific explanations:

- **A:** Appointment, not a brief, would be needed for an executive law-office title.
- **B:** This preserves the source distinction.
- **C:** No advocate receives a parliamentary vote from litigation.
- **D:** Constitutional office cannot arise temporarily from engagement.

Examiner trap 26: Client identity does not constitutionalise every counsel.

MCQ 27. Litigation allocation

The AGI's right of audience means that

A. only the AGI may appear for the Union B. the AGI controls every case listing C. the AGI may be heard in all courts while performing duties, but briefs may be allocated to other authorised counsel D. courts must accept the AGI's submissions

Answer: C.

Option-specific explanations:

- **A:** Union litigation can be handled by SGs, ASGs and other counsel.
- **B:** Courts control listings and proceedings.
- **C:** This states the proper scope.
- **D:** Courts decide independently of counsel's rank.

Examiner trap 27: All-court audience is not a litigation monopoly.

MCQ 28. Contempt role

Which statement most accurately describes the AGI's contempt-related role?

A. The AGI alone may punish criminal contempt B. Every contempt case requires AGI consent C. The AGI may initiate any criminal prosecution D. Section 15 provides bounded motion/consent routes while courts retain suo motu and adjudicatory power

Answer: D.

Option-specific explanations:

- **A:** Punishment is judicial.
- **B:** Suo motu and other statutory settings defeat the universal claim.
- **C:** Contempt motion/consent is not general prosecution authority.
- **D:** This accurately states the bounded role.

Examiner trap 28: Never translate contempt gatekeeping into prosecution or adjudication.

MCQ 29. Removal design

Which is the correct constitutional statement on AGI removal?

A. Article 76 prescribes no special removal procedure; pleasure governs B. Removal requires impeachment C. Removal requires a Supreme Court inquiry D. Removal requires a two-thirds parliamentary vote

Answer: A.

Option-specific explanations:

- **A:** This is the exact position.
- **B:** Impeachment is not prescribed.
- **C:** No judicial inquiry is mandated.
- **D:** No parliamentary special majority is required.

Examiner trap 29: Absence of a special process is central to the independence debate.

MCQ 30. Brijeshwar Singh Chahal

State of Punjab v Brijeshwar Singh Chahal (2016) is best used for

A. creating an AGI appointment collegium B. fair, transparent and objective selection of State law-officer panels as a public function C. granting fixed tenure to all law officers D. making legal advice binding

Answer: B.

Option-specific explanations:

- **A:** It did not rewrite Article 76 appointment.
- **B:** This is the bounded holding/context.
- **C:** No universal fixed tenure was created.
- **D:** The judgment did not make counsel opinions binding.

Examiner trap 30: Use the case for State-panel fairness, not an invented Union collegium.

MCQ 31. Reform priority

Which reform best addresses the part-time conflict risk without misdescribing the Constitution?

A. Declare the AGI a judge B. Give the AGI a parliamentary vote C. Use conflict disclosure, screening, recusal and permission records D. Give the AGI prosecution control

Answer: C.

Option-specific explanations:

- **A:** Judicial status would alter the office's function.

- **B:** A vote would contradict Article 88.
- **C:** This reform fits the identified risk.
- **D:** General prosecution authority is unrelated and unsupported.

Examiner trap 31: Reform should target the diagnosed defect, not add alien powers.

MCQ 32. Integrated proposition

Which composite statement is correct?

A. The AGI is a Cabinet member with a fixed term B. The AGI's advice binds courts and government C. The AGI cannot undertake any outside work under any circumstance D. The AGI is a constitutional law officer with all-court audience, Article 88 participation without vote, pleasure tenure and rule-bound outside work

Answer: D.

Option-specific explanations:

- **A:** Cabinet status and fixed tenure are both false.
- **B:** Advice is neither judgment nor command.
- **C:** Outside work is not universally barred, though heavily restricted.
- **D:** This is the complete qualified proposition.

Examiner trap 32: UPSC often joins several correct fragments; test every clause.

PYQS AND ANSWER PRACTICE

Verified PYQ source and key discipline

- **2025 GS-II Q5:** exact English wording retained from the audited locally held official-paper OCR; Mains has no official answer key, so the model below is an examiner-grade model, not an official solution.
- **2019 GS-II Q14:** the audited ledger securely establishes year, paper, question number, directive, marks, word limit and demand. Because exact official wording is not held in the controlled local set, only a neutral audited rendering is used.
- **2022 Prelims GS-I Q17:** the audited ledger routes the Attorney-General/Solicitor-General constitutional-position demand, but the exact official stem/options and a verified local official key are unavailable. No question wording, option or answer is reconstructed.

Verified PYQ 1 - UPSC GS-II 2025, Q5 - 10 marks, 150 words

"The Attorney General of India plays a crucial role in guiding the legal framework of the Union Government and ensuring sound governance through legal counsel." Discuss his responsibilities, rights and limitations in this regard.

Demand: role + rights + limitations + governance connection.

Model answer (145 words):

Article 76 makes the Attorney-General for India the Union's constitutional legal adviser. The office advises the Government of India on referred legal matters, performs assigned duties and represents the Union when briefed. Article 76(3) grants audience in all Indian courts; Article 88 permits participation in either House, joint sittings and named committees, but no vote. Article 105(4) extends proceeding-linked privileges.

These enabling rights coexist with limits. The AGI serves during presidential pleasure, has no fixed constitutional term and is not a Cabinet member. Advice does not bind government or court. The officer is not a whole-time government servant, yet Rule 8 bars adverse or prospective-conflict work and conditions criminal defence and corporate office on permission.

Thus the AGI strengthens lawful governance through preventive advice and skilled advocacy, but credibility depends on candour to court, conflict integrity and professional independence within an executive-client relationship.

Verified PYQ 2 - UPSC GS-II 2019, Q14 - 15 marks, 250 words

Neutral audited rendering: Discuss the Attorney-General as the chief legal adviser to the Government of India.

Demand: constitutional position + advisory and litigation role + rights + limits + balanced assessment.

Model answer (195 words):

The Attorney-General is the Government of India's chief legal adviser because Article 76 joins constitutional status with an executive-client function. The President appoints a person qualified to be a Supreme Court Judge. Under Article 76(2), the officer advises on referred legal matters, performs assigned legal duties and discharges functions conferred by the Constitution or law.

As the Union's senior advocate, the AGI may represent the government in assigned Supreme Court and High Court matters and Article 143 references under operational rules. Article 76(3) supplies audience in all Indian courts. Article 88 permits speaking and participation in Parliament, joint sittings and named committees without voting; Article 105(4) extends proceeding-related privileges.

The office remains limited. Advice is not binding, courts retain adjudication and ministers retain policy responsibility. Article 76(4) gives pleasure tenure and no fixed constitutional term. The AGI is not a Cabinet member or whole-time government servant. Outside professional work is possible only within Rule 8's client, conflict and permission controls; adverse advice against the Union is barred.

Therefore the AGI is both government lawyer and constitutional functionary. The office works best when loyalty means candid, lawful representation rather than partisan endorsement.

Verified PYQ 3 - UPSC Prelims GS-I 2022, Q17 - routed demand only

Audited demand: constitutional position of the Attorney-General and Solicitor General.

Official-key discipline: Exact stem/options and a verified local official key are unavailable, so this workbook does not invent a solved option. The safe learning result is that Article 76 creates only the Attorney-General; Article 88 names the Attorney-General for parliamentary participation; the Solicitor General is an executive/rule-governed law officer.

Exactly six original Mains models

Original Mains 1 - 10 marks

Question: Explain the appointment, qualification and tenure of the Attorney-General for India.

Model answer (137 words; ceiling 150):

Article 76(1) authorises the President to appoint the Attorney-General for India. The appointee must be qualified to become a Supreme Court Judge under Article 124(3): Indian citizenship plus one alternative - five years as a High Court Judge, ten years as a High Court advocate, or distinction as a jurist in the President's opinion.

The cross-reference imports professional qualification, not judicial office or retirement age. Article 76(4) provides that the Attorney-General holds office during the President's pleasure and receives remuneration determined by the President. The Constitution fixes neither a term nor a special removal procedure. Consequently, impeachment, retirement at sixty-five and a fixed salary are incorrect.

The design secures high legal competence but offers limited tenure insulation. Independence therefore depends substantially on professional ethics, convention and transparent conflict management rather than constitutional security of tenure.

Examiner logic: The answer follows claim -> named constitutional/rule/case evidence -> institutional analysis -> explicit qualification.

Original Mains 2 - 10 marks

Question: Distinguish the Attorney-General's parliamentary participation, membership, vote and privilege.

Model answer (134 words; ceiling 150):

Article 88 allows the Attorney-General to speak and otherwise take part in either House of Parliament, a joint sitting and a parliamentary committee of which the officer is named a member. It expressly denies a vote by virtue of office.

Participation does not create membership of Lok Sabha or Rajya Sabha. The Attorney-General remains a constitutional law officer, not an unelected legislator or minister. Article 105(4) extends clauses (1)-(3) of Article 105 to persons constitutionally entitled to speak or take part. The protection is therefore linked to legislative speech and proceedings; it is not blanket immunity for private or professional conduct.

The arrangement gives Parliament immediate legal explanation while reserving democratic decision-making to members. In one line: the Attorney-General has a protected voice, but neither a seat nor a vote by office.

Examiner logic: The answer follows claim -> named constitutional/rule/case evidence -> institutional analysis -> explicit qualification.

Original Mains 3 - 15 marks

Question: Examine the proposition that the Attorney-General is not a whole-time government servant but private practice is not unrestricted.

Model answer (199 words; ceiling 250):

The Attorney-General's constitutional status is not that of a whole-time civil servant. The part-time model allows government to retain a leading practitioner and does not constitutionally impose a universal ban on outside work. That status, however, is only the starting point.

Rule 8 of the Law Officers (Conditions of Service) Rules establishes the operative perimeter. A covered Union law officer cannot advise or hold a brief against the Government of India or undertake a matter creating a likely future conflict with the Union or covered public entity. Court briefs are restricted by the rule's listed-client framework. Defence of an accused in a criminal prosecution requires Government of India permission. Acceptance of an office in a company or corporation also requires permission, and specified governmental advice follows the Department of Legal Affairs reference route.

These controls protect client loyalty, confidential information and institutional credibility. Yet permission-based regulation may not eliminate perceived conflicts, especially where outside engagements are opaque.

Reform should therefore require written conflict screening, disclosure of relevant interest categories, recorded recusals and consistent permission decisions, while preserving privileged legal advice. The correct conclusion is qualified: outside practice is possible, but only inside a strict legal, ethical and conventional boundary.

Examiner logic: The answer follows claim -> named constitutional/rule/case evidence -> institutional analysis -> explicit qualification.

Original Mains 4 - 15 marks

Question: Compare the Attorney-General for India and the Advocate-General for a State.

Model answer (192 words; ceiling 250):

Articles 76 and 165 create constitutional legal advisers at two federal levels. The President appoints the Attorney-General, who must satisfy the Supreme-Court-Judge qualification in Article 124(3). The Governor appoints the Advocate-General, who must satisfy the High-Court-Judge qualification in Article 217(2). Both offices are held during the pleasure of the relevant constitutional head, with remuneration determined by that head; neither Article fixes a term or special removal procedure.

Their clients and rights differ. The Attorney-General advises the Government of India; the Advocate-General advises the State Government on referred matters and performs assigned or legally conferred functions. Article 76(3) expressly grants the Attorney-General audience in all Indian courts. Article 165 contains no matching clause, so the State officer's appearances depend on applicable professional, procedural and State arrangements.

Article 88 gives the Attorney-General parliamentary participation without vote, while Article 177 gives the Advocate-General participation in the State House or Houses and named committees without vote. Articles 105(4) and 194(4) provide the respective proceeding-linked privilege extensions.

Thus the Advocate-General is a federal counterpart, not a smaller textual copy: the design is shared, but qualification, client, audience wording and operational rules differ.

Examiner logic: The answer follows claim -> named constitutional/rule/case evidence -> institutional analysis -> explicit qualification.

Original Mains 5 - 20 marks

Question: The Attorney-General is government counsel and a constitutional functionary. Analyse the tension and suggest reforms.

Model answer (235 words; ceiling 250):

Article 76 deliberately combines two identities. As government counsel, the Attorney-General advises the Government of India on referred legal matters, performs assigned duties and represents the Union when briefed. Rule 8's adverse-interest and prospective-conflict bars confirm that the Union is the central client. As a constitutional functionary, the office requires Supreme-Court-Judge qualification, enjoys audience in all Indian courts, may participate in Parliament without voting and may perform functions conferred by law.

The combination has value. Preventive advice can identify illegality before policy is notified; coordinated advocacy can protect public revenue and ensure consistent constitutional positions. Candour to court and the bounded contempt-consent role also show that loyalty is not identical to partisan advocacy.

Tension arises from presidential pleasure, absence of a fixed constitutional term, executive-client dependence and permitted outside professional work within restrictions. These features may attract expertise and preserve governmental confidence, but can create perceived patronage, divided loyalty and discontinuity. Advice is usually confidential, making public evaluation difficult.

Reform should publish competence and conflict criteria, maintain written interest screening, require recorded recusals and permission decisions, strengthen litigation fact cells and appeal filters, and establish orderly transition conventions. *State of Punjab v Brijeshwar Singh Chahal* supports fairness and objective competence in State counsel selection, but does not create an AGI collegium.

The goal is not to turn counsel into a judge or ombudsman. It is to secure candid, conflict-resilient professional advice within democratic executive responsibility.

Examiner logic: The answer follows claim -> named constitutional/rule/case evidence -> institutional analysis -> explicit qualification.

Original Mains 6 - 20 marks

Question: Evaluate the constitutional and legal limits on the Attorney-General's powers and rights.

Model answer (233 words; ceiling 250):

The Attorney-General's authority is enabling rather than sovereign. Article 76(2) authorises advice to the Government of India on referred legal matters, assigned legal duties and functions conferred by the Constitution or law. It does not create a general policy veto, binding opinion or power to review every governmental action suo motu.

Article 76(3) grants audience in all Indian courts while duties are performed. This permits national advocacy but does not confer a monopoly over Union cases, control of court procedure or adjudicatory power. Article 88 permits speaking and participation in either House, joint sittings and named committees, yet expressly withholds a vote by office. Article 105(4) extends relevant proceeding-linked privileges, not blanket immunity or parliamentary membership.

Article 76(4) imposes another structural limit: presidential pleasure and no fixed constitutional term. The officer is not part of the Cabinet; the Law Minister remains the political executive, while courts led by judges retain final adjudication.

Professional freedom is also bounded. The AGI is not a whole-time government servant, but Rule 8 restricts briefs, bars adverse and prospective conflicts, and conditions criminal defence and corporate office on permission. Section

15 contempt functions are narrow motion or consent routes; they do not create general prosecution power.

Therefore the office is broad in access and influence but narrow in coercive authority. Its legitimacy rests on precise legal remit, candour to court and accountable conflict control.

Examiner logic: The answer follows claim -> named constitutional/rule/case evidence -> institutional analysis -> explicit qualification.